

PR 7-01

PERMANENT RESOLUTION NO. 90-01

**CHICKASAW TRIBAL LEGISLATURE
Exemption From Tribal Sales Tax**

WHEREAS, the Chickasaw Tribal Legislature is responsible for making decisions pertaining to the acquisition, leasing, disposition and management of tribal property subject to federal law, and for enacting rules and regulations pertaining to the Chickasaw Nation, and

WHEREAS, Governor Bill Anoatubby, chief executive officer of the tribe, or his designee, is authorized to enter into, negotiate, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature established a three percent sales tax in legislation adopted on July 15, 1988 (T.L. 5-004), and

WHEREAS, that tribal sales tax allows no exemptions, and

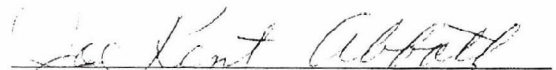
WHEREAS, this tribal sales tax is an added burden to tribal enterprises engaged in the sale of motor fuels which already contain state and federal taxes and therefore causes those entities to require higher selling prices on motor fuels thus significantly reducing their ability to compete with businesses which do have the tribal sales tax,

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Tribal Law 5-004, The Chickasaw Tribal Sales Tax Act of 1988, in the following manner: Create a new entry under Section 4 (a), to wit:

(1) provided, that an exemption to this tribal sales tax is granted to tribally-owned business enterprises on the sale of motor fuels;

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma on November 17, 1989, by a vote of 13 ayes, 0 nays and 0 abstentions.

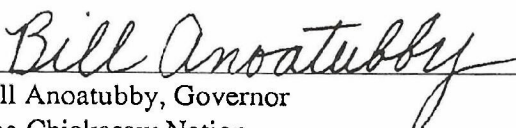
PASSED



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 17 1989